

19. S-PR-0014065 In Re the Estate of Voyles, Sandra Kay

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

Missing required allegations at ¶ 5a(7)–(8) (issue of predeceased child(ren)).

Missing relationship(s) of persons named in ¶ 8 to decedent.

20. S-PR-0014067 In Re the Alice B. Bowles Trust

Appearance is required for hearing on petition to interpret trust terms, appoint successor trustee, and for other relief.

Clarification is needed: petitioner alleges Barbara Porter and Keith Porter are or were two interested relatives of settlor, without describing any relationship between settlor and the Porters. Further, although petitioner alleges Keith Porter died approximately 40 years ago, notice was sent to a Keith Porter without explanation.

If the foregoing issue(s) are clarified to the court's satisfaction, the following additional calendar notes are provided:

The requested trust interpretation as to the share for Timothy McClean is contrary to the terms of the trust. The trust share for Timothy McClean vested immediately upon settlor's death because Timothy survived; it now passes to his estate. Petitioner offers no legal or factual basis for distribution other than to Timothy's estate.

The requested trust interpretation as to the share for Paul McClean is consonant with the trust's direction that his failure survive causes his share to pass to his surviving spouse.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are offered to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

21. S-PR-0014068 In Re the Estate of McClean, Timothy Alan

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing.

Petitioner response and / or court determination is needed as to request to waive bond: petitioner identifies as properties of the estate an income interest from a trust and two out-of-state mineral interests. Petitioner requests full IAEA powers, which requires the value of real property in the estate to be bonded. However, out-of-state real property cannot be administered in domiciliary proceedings and California and generally requires ancillary administration in the state where the real property is located.

Note: missing signed Duties form (DE-147). The clerk cannot issue any letters until the signed Duties form is filed. C.R.C. 7.150.

22. S-PR-0014069 In Re the Estate of Phillips, Patricia Ann

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

Missing relationship of petitioner to decedent (¶ 3g(2)(c)).

23. S-PR-0014070 In Re the Estate of Brehm, Peter Frank

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

If the court were to excuse further notice, notice remains outstanding to Sean McNabb. The counsel declaration filed March 13 is not a proof of service of notice of hearing.

Missing required allegations at ¶ 5a(3)–(4) (RDP).

Missing proof of subscribing witness(es). Will is not self-proving: witness statement is neither a declaration nor an affidavit.

24. S-PR-0014071 In Re the Estate of Lear, Tammy C.

Missing Attachment 7 (factual basis for relief) to spousal property petition. See ¶ 7.

Petitioner response is requested: the petition request determination of succession to and ownership of certain LLC interests "including" certain real property interests of the LLCs. LLC members do not own LLC assets. *CSHV 1999 Harrison, LLC v. County of Alameda* (2023) 92 CalApp.5th 117, 139. Ownership or succession to properties owned by the LLC is not justiciable in a spousal property petition. The only assets of decedent and survivor identified in the petition are the LLC membership interests themselves.

Petitioner response is requested: the petition appears to request reformation of two deeds granting certain real properties to two LLCs. The forms of relief available through a spousal property petition do not include reformation of deeds.